

REVENUE MEMORANDUM CIRCULAR NO. 89-2023 issued on September 7, 2023 publishes the full text of the Memorandum of Agreement (MOA) between the BIR and the National Library of the Philippines (NLP).

The NLP shall, without cost, assist BIR to:

- a. Install Linux and Koha Integrated Library System (ILS) on one of the BIR's identified desktop computers;
- b. Conduct orientation and tutorials to selected BIR personnel on how the Koha ILS works.

The BIR shall:

- a. Make available to NLP all information and other requirements necessary for the successful installation of the Linux and Koha ILS on one of the BIR's desktop computers;
- b. Download the system's patches from the Koha ILS's official website and install it to the BIR computer with the assistance of the BIR Information Systems Group;
- c. Identify the desktop computer where the Linux and Koha ILS shall be installed;
- d. Identify selected BIR personnel who will attend the orientation and tutorials to be conducted by the NLP, and provide the venue and other necessary resources for their successful holding, subject to the usual auditing and accounting rules and procedures.

Each Party acknowledges that it will retain its exclusive rights to copyrights, trademarks, or any other intellectual property, and conversely no Party shall acquire the intellectual property rights belonging to the other Party by reason alone of the MOA.

Neither Party shall use, copy, or in any manner commercially exploit the intellectual/proprietary property rights of the other Party for purposes other than the implementation of the MOA without prior written consent of the other Party.

The Parties shall be held free from liability arising from the exercise of their rights and obligations under the MOA except when such liability is attributable to the gross negligence or willful misconduct of any party or any of its officers/ representatives or employees.